



REQUEST FOR QUOTATION (RFQ) FOR SERVICES AND/OR GOODS

RFQ Number	POS0000003952
RFQ Description	Appointing a qualified, certified electrician and accredited service provider to disconnect the existing generator in East London, transport it to Kimberley, and install it at the Sedfa Kimberley office.
Issue Date	03 March 2026
Closing Date	09 March 2026 @ 11:00am
Method of submission	Responses should be submitted electronically to pzwane@sedfa.org.za
Non-compulsory site inspection date & address	06 March 2026 from 10:00am – 12:00pm
Contact person for site Inspection & Contact Details	Boniswa Linganiso - 060 691 9268 / 043 706 6705/6700 Martin Legodi- 012 748 9600

TERMS OF REFERENCE/ SPECIFICATION

1. PURPOSE

The purpose of this Request for Quotation (RFQ) is to appoint a qualified certified electrician and an accredited service provider to disconnect the existing generator in East London, transport it to Kimberley, and install it at the Sedfa Kimberley office.

2. PROJECT BACKGROUND

- 2.1. As of 01 October 2024, **sefa**, Seda, and the Cooperative Banks Development Agency (CBDA) have officially merged to form **Sedfa**. The incorporation of **Sedfa** stems from the signing of the National Small Enterprise Amendment Act 2024 (No. 21 of 2024) by President Cyril Ramaphosa on 23 July 2024, and its subsequent gazetting on 30 September 2024. **Sedfa** is a development finance institution, listed as a Schedule 3B National Government Business Enterprise, with the State as the sole shareholder and the Department of Small Business Development as the Executive Authority. **Sedfa** complies with both the Public Finance Management Act 1 of 1999 and the Companies Act 71 of 2008.



- 2.2. As a development finance institution, **Sedfa** provides both financial and non-financial support to Micro-Small Medium Enterprises (MSMEs) with the objectives to;
- 2.2.1. Design and implement development support programs for small enterprises,
 - 2.2.2. Promote service delivery network that enhances the contribution of small enterprises to the South African economy,
 - 2.2.3. Foster economic growth, job creation, and equity in historically disadvantaged communities,
 - 2.2.4. Support, promote, and develop cooperative banks and cooperative financial institutions, and
 - 2.2.5. Strengthen the capacity of service providers to support and enable small enterprises to compete successfully both domestically and internationally.

3. SCOPE OF WORK

- Quotations are hereby invited from a qualified and certified electrician, as well as an accredited service provider, for the disconnection of the existing generator in East London, its transportation to Kimberley, and its subsequent installation at the Sedfa Kimberley office.

3.1. CURRENT / EXISTING ADDRESS:

- 3.1.1. The service provider must disconnect all supply and commission cables running to the Emergency Power Supply System that feeds the Office Main DB and Information Technology UPS.
- 3.1.2. The Service Provider must, after disconnecting all cables and accessories attached to the generator, safely transport the unit to the new address.

3.2. NEW / DESTINATION ADDRESS:

- 3.2.1. The service provider must supply, install and commission the Emergency Power Supply System to feed the Office Main DB and Information Technology UPS.
- 3.2.2. All work and equipment shall be in accordance with the approved SABS Standards and shall comply with the Occupational Health and Safety Act, and current regulations of all other codes applicable to this work.
- 3.2.3. It is the contractor's responsibility to ensure that all circuits are designed to carry the load. The contractor must ensure that the phases are properly balanced
- 3.2.4. Circuit breakers, isolators and wiring to be correctly sized for each unit as per SANS 10142 wiring regulations.



3.2.5 The Contractor shall ensure that full Tank fuel is provided for testing and commissioning.

3.2.6 The contractor is responsible for providing cable routes and cabling from main DB to the Generator set.

3.2.7 PVC Conduit should be terminated in wall or extension boxes by means of adapters.

3.2.8 Earth continuity shall be maintained throughout the complete installation.

3.2.9 Maintenance and service (subject upon request) for a period of 12 months in case of a problem/emergency experienced after installation.

ADDRESSES:

Current / Existing Address:

- Chesswood Office Park, 2nd Floor, 8-10 Winkely Street Berea, East London, Eastern Cape

New / Destination address:

- 72 Long Street, Business Partners Building, Kimberly 8301

4 SPECIFICATIONS

4.1 Specification of generator to be moved:

Description	Picture/Notes
Ultra-Silent Diesel Generator (New Generator) 5kva Generator Three-phase, Rated Frequency 50 Hz Canopy Type: Silent weather resistant enclosure Noise Rating: Silent Integrated Diesel Tank Capacity: 180LTS Fuel Consumption @ 75% Load: 3.64 l/h	 *Please note that the attached picture is for illustration purposes only.



Dimensions: 2055mm X 930mm X 1130mm Dry Weight: 766kg PRIME POWER 15KV_a STANDBY POWER 16.5kVA ENGINE SPEED 1500rpm GOVERNOR SYSTEM Electronic Maximum 16.5kVA standby power at 230/400v @ 50Hz 1500rpm Ideal for home and small business applications Silent canopy which can stand outside with lockable doors Automatic changeover (ATS), maintenance free batteries and Trickle charger included Long range diesel tank allows for longer run times (180l) H-specification Insulation, brushless alternator with AVR provides stable output Four-way protection system included Powerful four-cylinder 1500rpm water cooled 4DW81-23D series Diesel engine Easy to use digital controller with auto and manual start options Peace of mind of earlier of one year/1000 hour warranty vs Traditional 3000rpm sets at six months/500 hours	
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4.2 COMPLIANCE

- Certificate of compliance (COC) after installation, testing and commissioning
- Installation circuit diagram

4.3 SITES ASSESSMENT

- Site assessments to be conducted at Chesswood Office Park, 2nd Floor, 8-10 Winkely Street Berea, East London, Eastern Cape Sedfa Office and are non-compulsory.

4.4 SERVICE LEVEL AGREEMENT (SLA)

- The SLA will provide for the following:
 - Escalation procedure on who to contact in case of a problem/emergency experienced after installation.
 - Turn-around time on responding to callouts:
 - Normal callouts: 8 hours
 - Emergency callouts: 1 hour
 - Turn-around time on resolving faults: 1 day
- Maintenance and service (subject upon request) for a period of 12 months in case of a problem/emergency experienced after installation.

NB: Bidders that do not quote as per the requirements/ specification will be regarded as non-responsive, and such proposals/ quotations will be disqualified.

5 EVALUATION OF THE PROPOSAL

5.1 Phase 1: SCM Document Assessment Criteria

The following assessment criteria will form the basis of the evaluation of all price proposals and failure to comply may result in the elimination of the price quotation for further evaluation:

- Submission of completed and signed SBD 4;
- Submission of completed and signed SBD 6.1;
- Tax Compliance status;
- B-BEEE Certification / B-BEEE Sworn Affidavit and
- Proof of registration on CSD (Central Supplier Database).



5.2 **Phase 2: Mandatory Requirements**

The following pre-qualification criteria will form the basis of the evaluation of all price quotations and failure to comply will result in the elimination of the price quotation for further evaluation:

No	Mandatory requirements	Comply / Not Comply
1.	The bidder (contractors) must have a valid CIDB grading of 1 EP or higher – submit valid proof.	
2.	The bidder must submit a minimum of two (2) contactable referees in reference letters where similar work was successfully completed in the last three (03) years. Note: The reference/s letter must be on the company letterhead, have a description, be signed, and have contact details for the referrer and the value of the contract. Purchase orders or appointment/award letters without references will not be accepted.	
3.	The bidder must submit valid COIDA letter of good standing.	

Bidders that fail to comply with all the mandatory requirements will not be considered for further evaluation, and they will be automatically disqualified.

5.3 **Phase 3: Preference Points System**

Only qualifying price quotations that achieved the minimum points for functionality will be evaluated further on the 80/20 preference points system as follows:

	Preference Point Criteria	Points Allocation
1.	Price	80
2.	Specific Goals as per the SBD 6.1	20
Total Points		100



Specific Goals and points claimed are indicated per table below:

Specific Goals Allocated and Points to claimed in terms of this RFQ																								
Indicate the following to support this claim. Failure to provide the required information will result in being forfeited.																								
Indicate Number of Full Time Employed Paid Employees:							_____																	
Total Annual Turnover or Revenue:							R_____																	
Size of Enterprise						Number of points allocated (80/20 system)	Number of points claimed (80/20 system) (To be completed by the tenderer)																	
Micro Enterprise						8																		
Small Enterprise						5.6																		
Medium Enterprise						3.2																		
Large Enterprise						0.8																		
Sworn Affidavit/ BBBEE Certificate (Ownership aligned to B-BBEE Status Level)						2																		
<table border="1"> <thead> <tr> <th>L1</th> <th>L2</th> <th>L3</th> <th>L4</th> <th>L5</th> <th>L6</th> <th>L7</th> <th>L8</th> </tr> </thead> <tbody> <tr> <td>2</td> <td>1.75</td> <td>1.50</td> <td>1.25</td> <td>1</td> <td>0.75</td> <td>0.25</td> <td>0</td> </tr> </tbody> </table>						L1	L2	L3	L4	L5	L6	L7	L8	2	1.75	1.50	1.25	1	0.75	0.25	0			
L1	L2	L3	L4	L5	L6	L7	L8																	
2	1.75	1.50	1.25	1	0.75	0.25	0																	
Black Women Owned (more/≥30% owned)						4																		
Target Group: Youth						2																		
Spatial: Rural						4																		
Spatial: Townships						2.4																		
Spatial: City						0.8																		



6 TERMS AND CONDITIONS

- 6.1 Price quotations submitted must be inclusive of all costs and applicable taxes (VAT) and be valid for a period of at least 30 days.
- 6.2 No late price quotations will be accepted under any circumstances.
- 6.3 Failure to submit a valid Sworn Affidavit (EME) or an original/certified valid B-BBEE Status Level Verification Certificate (other than EME or QSE), CIPC, Copy of Utility Bill/Lease Agreement/Title Deed/ Letter from the Municipality will result in no preference points being awarded for Specific Goals.
- 6.4 Suppliers/service providers must submit Companies & Intellectual Property Commission (CIPC) company registration documents listing all Directors or Shareholders and certified ID copies of Shareholders/Directors/Members/Partners.
- 6.5 Suppliers/service providers must complete and return all the required documents, failing which, the supplier/service provider's quotation will be declared invalid.
- 6.6 Service providers/suppliers must submit a valid Tax Compliance Status (TCS) Certificate with a unique security personal, Identification (PIN) issued by the South African Revenue Services (SARS) certifying that the taxes of the service provider/supplier are in order must be submitted at the closing date and time of the RFQ/Bid.
- 6.7 The hourly rates of consultants must be in accordance with the rates issued and determined by the South African Institute of Chartered Accountants, Department of Public Service and Administration or the body regulating the profession of the consultant (if applicable).
- 6.8 Consultant's travel arrangements must be in line with the government's travel cost containment measures [air travel, vehicle hire, accommodation rates, claiming kilometers according to the rates set by the Department of Transport] (if applicable).
- 6.9 This RFQ is subject to the National Treasury's General Conditions of Contract (GCC) that can be accessed at the following link:
- 6.10 Sedfa is committed to a fraud-free environment. One call can keep Sedfa Fraud & Corruption Free. Individuals may report any suspicious activity by calling the Sedfa Fraud Hotline: 0800 724 666 or email sedfa@thehotline.co.za or sms: 30916 or go to <https://www.thehotline.co.za/report>.

<http://www.treasury.gov.za/divisions/ocpo/sc/GeneralConditions/General%20Conditions%20of%20Contract-%20Inclusion%20of%20par%2034%20CIBD.pdf>

Sedfa wishes to thank you in advance for your price quotation.

BIDDER'S DISCLOSURE

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offer in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and/or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. Bidder's declaration

2.1 Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest¹ in the enterprise, employed by the state? **YES/NO**

2.1.1 If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners or any person having a controlling interest in the enterprise, in table below.

Full Name	Identity Number	Name of State institution

¹ the power, by one person or a group of persons holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.

2.2 Do you, or any person connected with the bidder, have a relationship with any person who is employed by the procuring institution? **YES/NO**

2.2.1 If so, furnish particulars:

.....
.....

2.3 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract? **YES/NO**

2.3.1 If so, furnish particulars:

.....
.....

2.4 DECLARATION

I, the undersigned, (name).....
in submitting the accompanying bid, do hereby make the following statements that I certify to be true and complete in every respect:

- 3.1 I have read, and I understand the contents of this disclosure.
- 3.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect.
- 3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement, or arrangement with any competitor. However, communication between partners in a joint venture or consortium² will not be construed as collusive bidding.
- 3.4 In addition, there have been no consultations, communications, agreements, or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.
- 3.4 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.

² Joint venture or Consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.

- 3.5 There have been no consultations, communications, agreements, or arrangements made by the bidder with any official of the procuring institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.
- 3.6 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 and 3 ABOVE IS CORRECT.

I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON PREVENTING AND COMBATING ABUSE IN THE SUPPLY CHAIN MANAGEMENT SYSTEM SHOULD THIS DECLARATION PROVE TO BE FALSE.

.....
Signature

.....
Date

Position

Name of bidder

SBD 6.1

PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to invitations to RFQ's/Tenders:

- the 80/20 system for requirements with a Rand value from up to R50 000 000 (all applicable taxes included); and

1.2 To be completed by the organ of state

a) The applicable preference point system for this RFQ/Tender is the **80/20** preference point system.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

- (a) Price; and
- (b) Specific Goals.

1.4 To be completed by the organ of state:

The maximum points for this RFQ/Tender are allocated as follows:

	POINTS
PRICE	80
SPECIFIC GOALS	20
Total points for Price and SPECIFIC GOALS	100

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this RFQ/Tender to claim points for **Specific Goals** with the RFQ/Tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a RFQ/Tender is adjudicated or at any time subsequently, to substantiate any claim regarding preferences, in any manner required by the organ of state.

2. DEFINITIONS

- (a) **“tender”** means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;
- (b) **“price”** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;
- (c) **“rand value”** means the total estimated value of a contract in Rand, calculated at the time of bid invitation, and includes all applicable taxes;
- (d) **“tender for income-generating contracts”** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and
- (e) **“the Act”** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

3. FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 PREFERENCE POINT SYSTEMS

A maximum of 80 points is allocated for price on the following basis:

80/20

$$Ps = 80 \left(1 - \frac{Pt - Pmin}{Pmin} \right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmin = Price of lowest acceptable tender

3.2. FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT

3.2.1. POINTS AWARDED FOR PRICE

A maximum of 80 points is allocated for price on the following basis:

80/20

$$Ps = 80 \left(1 + \frac{Pt - P_{max}}{P_{max}} \right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmax = Price of highest acceptable tender

4. POINTS AWARDED FOR SPECIFIC GOALS

4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/documentation stated in the conditions of this tender:

4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—

(a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or

(b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system,

then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific Goals for the RFQ/Tender and points claimed are indicated as per the table below.

(The 80/20 preference point system is applicable, corresponding points will also be indicated as such).

(Note to Tenderers: The tenderer must indicate how they claim points for each preference point system. Failure of the tenderer to submit the fully completed SBD 6.1 with the points claimed and supported by proof/documentation will result in points being forfeited)

Specific Goals Allocated and Points to claimed in terms of this RFQ	
Indicate the following to support this claim. Failure to provide the required information will result in being forfeited.	
Indicate Number of <u>Full Time Employed Paid Employees</u> :	_____

Total Annual Turnover or Revenue:								R_____	
Size of Enterprise								Number of points allocated (80/20 system)	Number of points claimed (80/20 system) (To be completed by the tenderer)
Micro Enterprise								8	
Small Enterprise								5.6	
Medium Enterprise								3.2	
Large Enterprise								0.8	
Sworn Affidavit/ BBBEE Certificate (Ownership aligned to B-BBEE Status Level)								2	
L1	L2	L3	L4	L5	L6	L7	L8		
2	1.75	1.50	1.25	1	0.75	0.25	0		
Black Women Owned (more/≥30% owned)								4	
Target Group: Youth								2	
Spatial: Rural								4	
Spatial: Townships								2.4	
Spatial: City								0.8	

The National Small Enterprise Act thresholds for defining enterprise size classes by sector, using two proxies as gazette 15 March 2019

Column 1	Column 2	Column 3	Column 4
Sectors or sub-sectors in accordance with the Standard Industrial Classification	Size or class of enterprise	Total full-time equivalent of paid employees	Total annual turnover
Agriculture	Medium	51 - 250	≤ 35,0 million
	Small	11- 50	≤ 17,0 million
	Micro	0 – 10	≤ 7,0 million
Mining and Quarrying	Medium	51 - 250	≤ 210,0 million
	Small	11- 50	≤ 50,0 million
	Micro	0 – 10	≤ 15,0 million
Manufacturing	Medium	51 - 250	≤ 170,0 million
	Small	11- 50	≤ 50,0 million
	Micro	0 – 10	≤ 10,0 million
Electricity, Gas and Water	Medium	51 - 250	≤ 180,0 million
	Small	11- 50	≤ 60,0 million
	Micro	0- 10	≤ 10,0 million
Construction	Medium	51 - 250	≤ 170,0 million
	Small	11- 50	≤ 75,0 million
	Micro	0- 10	≤ 10,0 million
Retail, motor trade and repair services.	Medium	51 - 250	≤ 80,0 million
	Small	11- 50	≤ 25,0 million
	Micro	0 – 10	≤ 7,5 million
Wholesale	Medium	51 - 250	≤ 220,0 million
	Small	11- 50	≤ 80,0 million
	Micro	0 – 10	≤ 20,0 million
Catering, Accommodation and other Trade	Medium	51 - 250	≤ 40,0 million
	Small	11- 50	≤ 15,0 million
	Micro	0 – 10	≤ 5,0 million
Transport, Storage and Communications	Medium	51 - 250	≤ 140,0 million
	Small	11- 50	≤ 45,0 million
	Micro	0 – 10	≤ 7,5 million
Finance and Business Services	Medium	51 - 250	≤ 85,0 million
	Small	11- 50	≤ 35,0 million
	Micro	0- 10	≤ 7,5 million
Community, Social and Personal Services	Medium	51 - 250	≤ 70,0 million
	Small	11- 50	≤ 22,0 million
	Micro	0 – 10	≤ 5,0 million

01:35:05

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DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm.....

4.4. Company registration number:
.....

4.5. TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
- ☐ One-person business/sole propriety
- ☐ Close corporation
- ☐ Public Company

- ☐ Personal Liability Company
☐ (Pty) Limited
☐ Non-Profit Company
☐ State Owned Company

[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

- i) The information furnished is true and correct;
- ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;
- iii) In the event of a contract being awarded as a result of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;
- iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –
 - (a) disqualify the person from the tendering process;
 - (b) recover costs, losses or damages it has incurred or suffered as a result of that person's conduct;
 - (c) cancel the contract and claim any damages which it has suffered as a result of having to make less favourable arrangements due to such cancellation;
 - (d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and
 - (e) forward the matter for criminal prosecution, if deemed necessary.

.....
SIGNATURE(S) OF TENDERER(S)

SURNAME AND NAME:

DATE:

ADDRESS:

.....

.....

.....